THE NATIONAL COMPANY LAW TRIBUNAL
CHANDIGARH BENCH, COURT–II, CHANDIGARH

CP (CAA) No. 2/Chd/Hry/2025
(2nd Motion)

Under Section 230-232 of the Companies Act, 2013 read with Rule 16 of the Companies (Compromises, Arrangements and Amalgamations) Rules, 2016.

IN THE MATTER OF SCHEME OF AMALGAMATION OF:

Tex Corp Private Limited
Registered office: Mohammadpur
Khandsa Road, Gurgaon,
Haryana-122001
CIN: U36100HR1982PTC014609
PAN: AABCT4364L

…….Demerged Company/Petitioner Company No. 1

AND

Tex Fasteners Private Limited
Registered office: Mohammadpur
Khandsa Road, Gurgaon,
Haryana-122001
CIN: U14101HR2023PTC116244
PAN: AAKCT5394B

.....Resulting Company/Petitioner Company No. 2

Order delivered on: 22.01.2025

CORAM: HON'BLE MR. HARNAM SINGH THAKUR, MEMBER (JUDICIAL)
HON'BLE MR. ASHISH VERMA, MEMBER (TECHNICAL)

PRESENT:
For the petitioner Companies:- Mr. GS Sarin, PCS with Mr. N.P.S. Chawla, Ms. Ashima Jain, Mr. Yash Jain and Mr. Lokesh Dhiyani Advocates

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ORDER

This is a joint Second Motion Petition filed by the Petitioner-Companies namely; **Tex Corp Private Limited**, (hereinafter referred as Petitioner Company No.1/Demerged Company) and **Tex Fasteners Pvt. Ltd.** (hereinafter referred as Petitioner Company No.2/Resulting Company) for the sanction of Scheme of Arrangement (for brevity '**Scheme**') under Sections 230-232 of the Companies Act, 2013 (for short to be referred hereinafter as the **'Act'**) in terms of Rule 16 of the Companies (Compromises, Arrangements and Amalgamations) Rules, 2016 (for brevity, 'Rules').

2. The Petitioner Companies have prayed for sanctioning of the Scheme of Arrangement between the respective companies. The said Scheme is attached as Annexure- A of the company Petition. The registered office of the Demerged Company and Resulting Company is in Gurgaon, Haryana, India and therefore, it is under the territorial jurisdiction of this bench.

3. The first motion application was disposed of vide order dated 02.07.2024, with directions to convene the meetings of secured and unsecured creditors of the Demerged Company No.1 and to dispense with the meetings of equity shareholders and preference shareholders of both Petitioner Company, and secured creditors and unsecured creditors of the Petitioner Company No.2 for the reasons recorded in the aforesaid order. In compliance with the directions issued by this Tribunal, meetings of secured creditors and unsecured creditors of the Demerged Company were convened on 21.12.2024.

4. The Compliance Affidavit was filed by Petitioner Companies vide diary Nos.01151/2 dated 16.12.2024 and 01151/3 dated 16.12.2024 wherein, the meeting as per order dated 02.07.2024 was convened and the applicant companies served the notice of meeting to

the secured and unsecured creditor of demerged company by Registrar and Share Transfer Agent of applicant companies i.e. Kfin Technologies Limited vide email on 14.11.2024. Further, the demerged company on 16.11.2024, published notice of meeting in two newspapers namely Haryana Edition of Business Standard in English and in Jansatta in Hindi. Moreso, the applicant companies served notice of meeting of the statutory authorities including Regional Director, Registrar of Companies and Income Tax Authorities. The copy of e-mail from Kfin confirming 100% delivery of notice of meeting of Creditors via email, notice published in newspapers, postal receipt and tracking reports are attached from Annexure A to E of the respective affidavits. Chairperson Report on result of the meeting of unsecured creditor filed vide diary No.01151/4 dated 31.12.2024.

5. In compliance of the directions issued by this Tribunal, the Chairperson, Alternate Chairperson and Scrutinizer were also appointed and they have filed their reports which are as under:

Sr. No.	Meeting of	Chairpersons /Alternate Chairperson/Scrutinizer	Chairperson's Report		Date of meeting
			Date of filing	Date of Report	
1.	Secured Creditor of Applicant Company No.1	Mr. Bhupesh Gupta, Chairperson Vinod Kumar Mahajan, Alternate Chairperson Mr. Shubham Gupta, Advocate, Scrutinizer	Diary No. 01151/5 dated 31.12.2024	26.12.2024	21.12.2024
2.	Unsecured Creditor of Applicant Company No. 1		Diary No. 01151/4 dated 31.12.2024	24.12.2024	

6. As per Chairperson's Reports, the resolution approving the scheme has been approved and passed by 100% in case of secured creditors and 99.99% in case of the unsecured creditors of Applicant Company No.1.

7. In its petition, the petitioner companies have prayed for directions for issuance of notice to the regulators including the sectoral regulators and publication of notice inviting the objections of the general public regarding the proposed scheme of amalgamation.

DIRECTIONS

8. Learned counsel for the petitioner company is directed to file an affidavit regarding Petitioner Company No.1, stating that they have not carried on any real estate business and are not registered with RERA. Let the same be done within one week and thereafter issue notice of this petition to the concerned authorities.

9. In addition to the above public notice, the Petitioner Companies shall serve the notice of the petition on the following Authorities namely, a) the Central Government through the office of Regional Director, Northern Region at B-2 Wing, 2nd Floor, Paryavaran Bhawan, CGO Complex, New Delhi – 110003; (b) Registrar of Companies, NCT of Delhi and Haryana (c) Jurisdictional Income Tax along with a copy of this petition by speed post immediately.

10. The notice of hearing will be advertised in "Business Standard" (Delhi/NCR and Haryana/Chandigarh Edition) in English and Jansatta in Hindi (Delhi/NCR and Haryana/Chandigarh Edition) not less than 10 days before the next date fixed for hearing.

11. The petitioner companies shall at least 7 days before the date of hearing of the petition file an Affidavit of Service regarding newspaper publication with newspaper clippings as well as service of notices on the authorities specified above. Objections, if any, to the

'Scheme' contemplated by the authorities to whom notice has been given may be filed on or before the date of hearing fixed herein, failing which it will be considered that there is no objection to the approval of the 'Scheme' on the part of the authorities and this Tribunal will proceed in the matter, subject to other conditions being satisfied as may be applicable under the Companies Act, 2013 and relevant rules framed thereunder. The petitioner companies shall also file an Affidavit stating the objections received from public pursuant to publication of notice of hearing in the newspapers.

12. The next date of hearing of the petition shall be on 21.03.2025 for the consideration of the approval of the scheme as contemplated between the petitioner companies.

13. The Registry shall also report before the date fixed as to whether any objection has been received to the proposed 'Scheme'.

14. Let a copy of the order be served to the respective parties.

Sd/-

(ASHISH VERMA)
HON'BLE MEMBER (T)

Sd/-

(HARNAM SINGH THAKUR)
HON'BLE MEMBER (J)

JG/PRF